

23VECV02011 23VECV02011

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Case Number: 23VECV02011 Hearing Date: June 24, 2026 Dept: B

Tentative Ruling

Brentwood Communications Int'l. v. Fully

Torqued Productions, Case no. 23VECV02011

Hearing date June 24, 2026

Plaintiff BCII's Motion for

Sanctions

Plaintiff BCII's Motion for Leave

to Amend Complaint

Plaintiff

BCII's Motion for Leave to Amend Answer to the Cross-Complaint - UNOPPOSED

Plaintiff

Brentwood Communications Int'l., Inc., ("BCII") sues defendant Fully Torqued

Productions for breach of contract. Defendants Pazmany and Fully Torqued

Industries, LLC were named as Doe defendants on 3/26/26. Plaintiff alleges

defendants agreed to pay plaintiff \$868,584 for production/post-production services for defendant's series "Fully Torqued." Plaintiff alleges defendant failed to pay for services, with a balance owing of \$529,031.

The

cross-complaint alleges plaintiff made fraudulent misrepresentations to induce defendant to entering into production agreements for seasons one and two of "Fully Torqued." Defendants allege plaintiff breached the agreement, including revising the production budget of season one without prior approval and failure to timely deliver program episodes.

Plaintiff

moves for sanctions, alleging discovery abuses. Defendants oppose. Plaintiff moves for leave to amend the complaint to add two new causes of action; defendants oppose. Plaintiff moves for leave to amend the answer to the cross-complaint; the motion answer is unopposed.

Defendants

filed the declaration of Pazmany. Plaintiff objects. Objections 1-22 OVERRULED.

Plaintiff BCII's Motion for Sanctions

Plaintiff

offers the declaration of Poyourow. Defendants object. Objections 1-12

OVERRULED.

Plaintiff

requests evidentiary, issue and monetary sanctions of \$20,825, alleging discovery abuses. "The power to impose discovery sanctions is a broad discretion subject to reversal only for arbitrary, capricious, or whimsical action. Only two factors are absolutely prerequisite to imposition of the sanctions: (1) there must be failure to comply . . . and (2) the failure must be willful." Calvert Fire Ins. Co. v. Cropper (1983) 141 Cal.App.3d 901, 904.

The

court may impose monetary or other sanctions for misuse of the discovery process. Code Civ. Proc. §2023.030. Such misuses include: ... (b) using a discovery method in a manner that does not comply with specified procedures; (c) employing discovery to an extent that causes annoyance or undue burden and expense; (d) failing to respond or to submit to authorized discovery; (e) making, without justification, an unmeritorious discovery objection; (f) making an evasive response to discovery; and (g) disobeying a court order to provide discovery. Code Civ. Proc. §2023.010.

Plaintiff

asserts defendants "intentionally and wrongfully delayed the timely and prompt production of documents." Mtn., p. 4, fn. 1. Plaintiff moved to compel further

production of financial documents. Decl. Poyourow, para. 11. At the informal discovery conference, defense counsel represented no further responsive documents existed. Id. at para. 12. On 8/22/25 the court ordered defendants to: (1) produce code compliant, original, verified supplemental responses to RFPS, set one, nos. 145-147, 150-152, 157-162, 164-167, 171-174, 176, 191-192 and 207 within 20 days; (2) produce complete, un-redacted documents in response to RFPs nos. 13-60, 62-142 and 163; and (3) pay sanctions of \$9,599.99. Id. at para. 13, exh. 1.

Plaintiff

asserts defendants failed to serve timely responses, responding 33 days late, in violation of court order. See Decl. Poyourow, para. 16, exhs. 2-3.

Plaintiff asserts the tardy responses included objections previously found unavailing by the court and denied possessing responsive financial documents. Id. at para. 17, exhs. 2.

Plaintiff

asserts defendants continue to withhold responsive documents, including communications with nonparty Foster, on the basis of privilege. Decl. Poyourow, para. 22, exhs. 6-7. Plaintiff asserts defendants continue to withhold responsive financial documents relating to nonparty Summit Racing, which produced responses pursuant to subpoena showing these documents do exist. Id.

at para. 23.

Defendants

argue they complied with all discovery obligations and orders. Notwithstanding,

defendants assert they served further supplemental responses on 6/9/26. Decl.

Hilvert, para. 7. Defendants assert these documents were not produced

previously, resulting from oversight due to the volume of the production. Decl.

Pazmany, para. 6.

Defendants

argue the remaining financial documents concern Pazmany's personal bank account

and Fully Torqued Industries, LLC, which defendants contend were not subject to

the 8/22/25 order. Defendants reassert that all responsive, relevant

non-privileged documents in their possession have been produced and argue no

sanctions are warranted.

Pazmany

and Fully Torqued Industries were not subject to the court's 8/22/25 order, as

neither was named until 3/26/26. See 3/26/26 Amendments to Compl. The

proper remedy as to these defendants is a motion to compel or motion to compel

further. However, Fully Torqued Production previously produced a history of

financial transactions that were run through Full Torqued Industries, LLC's

bank account related to the series' profits and expenses. See Decl. Poyourow,

exh. 4. These records were subject to the 8/22/25 order; failure to produce unredacted records violates the order.

The

court finds defendant Fully Torqued Productions and counsel violated the order with regards to the further documentation produced on 6/9/26. Defendants state the failure to produce was due to oversight; mere oversight does not justify a delay of over a year. Further, defendants produced redacted responses, in violation of the order which stated: "[defendant]'s heavily redacted production of financial documents omits key information necessary for plaintiff to make sense of those documents for purposes of this action." 8/22/25 Min. Order.

Fully

Torqued Productions and counsel violated the order, necessitating sanctions.

The court will continue the issue of evidentiary sanctions; if defendants fail to produce full, code-compliant and unredacted responses within 30 days, the court will consider granting issue and evidentiary sanctions.

Plaintiff

requests \$20,825 in attorney's fees at \$425/hour. See Decl. Poyourow, paras. 35-41. Plaintiff requests 49 hours: 10 hours for meet and confer, 6 hours preparing for IDC, 25 hours for drafting moving papers, plus 6 hours for reply and 2 hours for hearing. Id. at paras. 35, 41.

While

the court may award sanctions (Serrano v. Unruh (1982) 32 Cal.3d 621, 639), fees for meet and confer or IDC efforts are not awarded, as these fees would typically be incurred. 25 hours for drafting is unreasonable; the court awards 5 hours for drafting, 2 hours for reply and 1 hour for hearing. The requested hourly rate is reasonable. The court awards 8 hours at \$425/hour, totaling \$3,400.

GRANTED

as to monetary sanctions, joint and several by defendant Fully Torqued Productions and counsel Lowe & Associates, P.C. within 30 days. The motion as to issue and evidentiary sanctions is continued; if defendants fail to produce full, code-compliant, unredacted responses as of that date, the court will consider such.

Plaintiff BCII's Motion for Leave to Amend Complaint

Plaintiff

offers the declaration of counsel Poyourow. Defendants object. Objections 1-21

OVERRULED.

"A

party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed..." Code Civ. Proc. §472(a).

Otherwise, leave of court is required to file an amended pleading. *Hodges v.*

Cnty. of Placer (2019) 41 Cal.App.5th 537, 544. Amendments may be

appropriate at various stages of litigation, including late in the proceedings,

where the amendment is justified and does not unfairly prejudice the opposing

party. *Honig v. Financial Corp. of Am.* (1992) 6 Cal.App.4th 960, 965. The

key consideration is not when amendment is sought, but whether amendment is

justified under the circumstances. *Id.*

CRC

3.1324 requires that papers supporting a motion for leave to amend: (1) include

a copy of the proposed amended pleading, numbered to differentiate it from

previous pleadings; (2) state what allegations in the previous pleading are to

be deleted and where those allegations are located; and (3) state what

allegations are proposed to be added and where those allegations are located. CRC

rule 3.1324(a).

Plaintiff

seeks to add causes of action against FTP, FTI, and Pazmany to impose alter ego

liability and pierce the corporate veil. The causes of action are breach of

contract - fraud, accounting and declaratory relief. See Decl. Poyourow,

para. 25, exh. 6.

Defendants

oppose, arguing the statute of limitations on the proposed claims expired. This is to be raised on demurrer or motion for judgment on the pleadings. The court will not consider the merits of the proposed claims now, only whether the proposed amendment complies with CRC 3.1324 and Honig, supra.

Defendants

argue there is no basis to name Pazmany or FTI, as Pazmany should have been named previously and FTI is not a proper party because it was not party to the underlying contract. The proposed amendment turns on an alter-ego theory of liability and contains allegations permitting the naming of Pazmany and FTI.

Notwithstanding, a motion to quash or demurrer is the appropriate remedy for arguments as to misjoinder.

Defendants

argue plaintiff has been dilatory in seeking to discover facts giving rise to proposed alter-ego allegations. Defendants argue permitting amendment now would be prejudicial. Poyourow's declaration asserts that evidence first produced after the 8/12/25 IDC and 8/22/25 court order form the basis of the proposed amendments. Decl. Poyourow, para. 25 at 10:11. Defendants failed to produce timely responses to that order and only recently produced further responses. Defendants cannot avail themselves of a delay argument, much of which they caused.

Plaintiff

gave notice multiple times between November 2025 and February 2026 that it would seek to amend the complaint in light of newly discovered evidence. See Decl. Poyourow, para. 22, exh. 4; para. 23, exh. 5; para. 24. This matter remains in discovery, and no trial date has been set. There is no substantial prejudice as to the timing of the amendment.

Defendants

argue permitting the addition of Pazmany and FTI would impermissibly expand the scope of the litigation. This is unavailing. When an amended complaint rests on the same general facts as the original complaint, the change in legal theory or addition of new claims based on those facts does not render the amendment improper. *Smeltzley v. Nicholson Mfg. Co.* (1977) 18 Cal.3d 932, 939. The question is whether a proposed amendment rests on the same general set of facts as the original; here, it does.

California

has a policy favoring liberal amendment of pleadings up to, and including, the eve of trial. Here, trial has not been set; defendants cannot show substantial prejudice as to the timeliness of the amendment. The proposed amendment arises from the same general facts and is permitted under *Smeltzley*, supra.

GRANTED.

Plaintiff BCII's Motion for Leave to Amend Answer to

the Cross-Complaint

California

favors liberally permitting amendments. See *Atkinson v. Elk Corp.*

(2003) 109 Cal.App.4th 739, 760. The right to file an amended answer "as of

course" is limited to the time within which plaintiff may demur to the original

answer, whether such demurrer is actually filed or not. *Milstein v. Sartain*

(1943) 56 Cal.App.2d 924, 933; *Manha v. Union Fertilizer Co.* (1907) 151

Cal. 581, 583. After this time has elapsed, a party may seek leave to amend via

motion. See *Hodges v. Cnty. of Placer* (2019) 41 Cal.App.5th 537,

544. Procedural requirements are stated in CRC rule 3.1324, as above.

The

proposed amended answer is attached See Decl. Poyourow, exh. 4.

Plaintiff argues good cause to for leave exists, as: (1) allegedly new evidence

necessitating amendment only became available via discovery after cross-defendants

filed the initial answer; (2) newly discovered evidence shows there may have

been a unilateral or mutual mistake on which version of the "Season One

Production Agreement" and "Production Budget" were effective, a material issue

in this case; (3) the motion for leave to amend is timely; and (4) cross-complainants

are not likely to suffer prejudice from the proposed amendments. The motion to

amend the answer is unopposed. The proposed amendment is compliant with CRC

rule 3.1324. GRANTED.